

		On the Court's own motion, the ADR Review Hearing and Status Conference scheduled for July 30, 2026, is CONTINUED to October 8, 2026, at 9:30 a.m. in Department C12. Status Report due by September 24, 2026. THIS RULING IS FINAL. Clerk to give notice.
7.	Fadly vs. Hi-Tech Builders, Inc. 24-01440345	Motion to Expunge Mechanics Lien The Court has considered the extensive briefing submitted in connection with this motion, including the supplemental briefings filed after the original April 17, 2026, hearing date. The Court notes that the briefing history included repeated late filings by Hi-Tech, which unnecessarily complicated the Court's review. Having considered the record, the Court affirms its original tentative ruling posted for the April 17, 2026, hearing date. Plaintiff Bradley Fadly's motion to expunge the mechanic's lien filed by defendant Hi-Tech Builders, Inc. is GRANTED. Hi-Tech has not made a sufficient evidentiary showing, on this record, to establish the validity, enforceability, and amount of the lien. Hi-Tech has not made a sufficient evidentiary showing that establishes the validity, enforceability, and amount of the claimed lien. Hi-Tech's supplemental opposition relies largely on attorney arguments and conclusory assertions that work was performed and that invoices, ledgers, receipts, change orders, and subcontractor payments support the lien. However, to this Court, Hi-Tech has not presented persuasive competent evidence adequately establishing the amount claimed or showing that the lien is enforceable in the amount recorded. The mechanic's lien against the property owned by Fadly, recorded as Document No. 2024000219904, in the official records of the Recorder's Office of Orange County on or about August 27, 2024, by Defendant and Cross-Complainant Hi-Tech Builders, Inc. is Expunged and released from the property. This ruling is without prejudice to Hi-Tech's ability to pursue its non-lien claims in the underlying action.

		Finally, the Case Management Conference is VACATED. The jury trial date of June 25, 2027, remains. Fadly to give notice.
8.	Fidelity National Title Insurance Company vs. Cal-Tex Acquisition IV, LLC 23-01352435	Motion for Summary Judgment and/or Adjudication Plaintiff Fidelity National Title Insurance Company's motion for summary judgment, or alternatively, summary adjudication, is DENIED. (Code Civ. Proc., § 437c [authorizing motion].) Summary adjudication is denied because moving party's separate statement does not "separately identify ... <u>[e]ach cause of action</u> ... that is the subject of the motion," or "[e]ach supporting material fact claimed to be without dispute <u>with respect to the cause of action</u> ... that is the subject of the motion." (Cal. Rules of Court, Rule 3.1350, subd. (d); emphasis added; see also <i>Cadlo v. Owens-Illinois, Inc.</i> (2004) 125 Cal.App.4th 513, 523 [court's discretion to deny summary adjudication based on failure to comply with separate statement requirements].) Moving party's requests to consider its "Amended Separate Statement" filed with the Reply (ROA 198), and/or to continue the hearing for a response, are DENIED. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new arguments / evidence presented for the first time on Reply are not considered, unless the opposing party has notice and an opportunity to respond]; Code Civ. Proc., § 437c, subds. (a)(2) [motion for summary judgment / adjudication requires 81 days' notice], (a)(3) [hearing must be within 30 days of 9-4-26 trial absent good cause, not present here]; <i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1262 ["trial courts do not have authority to shorten the minimum notice period for summary judgment hearings"].) Summary judgment is denied due to triable issues regarding causation and damages, which are essential elements of each cause of action in moving plaintiff's First Amended Complaint. (Code Civ. Proc., § 437c, subd. (p)(1) [burden].) As to the 1st cause of action for breach of [implied] contractual indemnity and 2nd cause of action for breach of contract for benefit of third person, moving plaintiff's evidence indicates the existence and breach of an indemnity obligation on defendants' part, based on defendants' execution of an "Owner's Declaration" and "Owner's Affidavit (Commercial)" denying knowledge of any "pending court action affecting the title," and/or any "persons or entities that assert an ownership interest in the Land" (Exs. J and K to moving papers), despite knowledge of a pending action entitled <i>NQR Corp. v. Caltex Acquisition IV, LLC</i>, Orange County Superior Court Case No. 2020-